

FEDERAL MARITIME COMMISSION

DOCKET NO. CC-002

HAPAG-LLOYD AG – INVESTIGATION FOR COMPLIANCE WITH 46 U.S.C. § 41104(a) UNDER THE CHARGE COMPLAINT PROCEDURES OF 46 U.S.C. § 41310

**BUREAU OF ENFORCEMENT, INVESTIGATIONS, AND COMPLIANCE
RESPONSE TO RESPONDENT’S MOTION FOR CONFIDENTIAL TREATMENT**

By Order to Show Cause (OSC) dated March 6, 2026, the Federal Maritime Commission (Commission or FMC) instituted this proceeding and directed Respondent Hapag-Lloyd AG (Hapag or Respondent) to show cause why the Commission should not order it to refund or waive charges assessed or paid, or impose a civil penalty, under 46 U.S.C. §§ 41310(d) and 41107, for failure to comply with 46 U.S.C. § 41104(a). This proceeding was commenced under 46 U.S.C. § 41310 and 46 C.F.R. § 502.91, based on information submitted by Complainant Oceana Global Logistics, LLC (Complainant).

In the OSC, the Commission’s Bureau of Enforcement, Investigations, and Compliance (BEIC) was made a party to the proceeding. Respondent was ordered to submit its affidavits of fact, memoranda of law, and documentary evidence by March 31, 2026. On that date, the Commission received Respondent’s response to the Order to Show Cause and, separately, Respondent’s Motion for Confidential Treatment of Portions of Its Response to the Order to Show Cause. Therein, Respondent requested that references to Respondent’s financial accounts and rates between Respondent and Complainant be kept confidential.

Confidential treatment may be warranted to protect trade secrets and minimize dangers to private entities. See United States v. Hubbard, 650 F.2d 293, 315–16 (D.C. Cir. 1980). The

Commission has stated that “protecting commercial entities’ trade secrets and confidential rates information is an important consideration.” Mediterranean Shipping Company – Investigation for Compliance with §§ 41104(a) and 41102 of Demurrage or Detention Charges Under the Charge Complaint Procedures of 46 U.S.C. § 41310 (MSC), Docket No. CC-001, F.M.C.2d 14, 18 (FMC Sep. 9, 2023).

Respondent filed its Motion For Confidential Treatment pursuant to Commission Regulations in Subpart E at 46 C.F.R. 502.69. Here, the Commission has expressly disabled Subpart E, including § 502.69, which provides for the filing of motions. The OSC specifically states, “IT IS FURTHER ORDERED That, pursuant to 46 C.F.R. § 502.10, the Commission hereby waives the provisions of Subparts A - E, I - L and P of Part 502, and all other provisions of the Commission’s Rules of Practice and Procedure except as consistent with this Order.” OSC at 7. This proceeding is governed by the Show Cause process pursuant to 46 C.F.R. § 502.91, found within Subpart F of the Commission’s regulations.

The respondent in MSC also motioned for confidential treatment of certain information, also relying on the same waived Subpart E. There, the Commission granted the respondent’s motion for confidential treatment based on the importance of “protecting commercial entities’ trade secrets and confidential rates information” and the absence of “delay [in] the Commission’s prompt investigation of this charge complaint.”¹

¹ The Commission denied the respondent’s petition to dismiss and the respondent’s petition for leave to file a sur-reply due to reliance on the waived provisions and possible hindrance to the Commission’s prompt investigation. MSC, F.M.C.2d at 17, 18–19.

Procedurally, BEIC objects to the filing of any motion in this proceeding. BEIC, however, recognizes the commercially sensitive aspect of the materials Respondent wishes to keep confidential and therefore has no objection to Respondent's request, nor does BEIC object to Respondent filing both public and confidential versions of its Response to the Order to Show Cause.

Respectfully submitted,

/s/ Brenda Doty
Brenda Doty
Grace Lee
Bureau of Enforcement, Investigations, and
Compliance

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 7th day of April 2026, the foregoing Response was served upon Respondent via electronic mail at the following addresses:

Mediterranean Shipping Company, S.A.

Cassandra Hemmer
Wook Chung
Kaspar Kielland
Matteo Bonuzzi
Montgomery McCracken Walker & Rhoads LLP
427 Madison Avenue, 24th Floor
New York, New York 10022
(212) 551-7777 / (212) 551-7795

chemmer@mmwr.com
wchung@mmwr.com
kkielland@mmwr.com
mbonuzzi@mmwr.com

/s/ Brenda Doty _____
Brenda Doty